CONTRACT DATA

Part one – Data provided by the *Client*

1 General

- The *conditions of contract* are the core clauses and the clauses for main Option A and secondary Options X1, X7, X11, X14, X16, X20 and Z of the NEC4 Engineering and Construction Contract (June 2017, with amendments October 2020) published by Thomas Telford Limited (NEC4 ECC), as amended or supplemented by the Schedule to the Articles of Agreement, and include the *additional conditions of contract*.

- The *works* are modification works for a section of vertical noise barriers along Yuen Long Highway near Park Signature, as more particularly described in the General Particulars Clause 2.1 under the Scope.

- The *Client* is the Government of the Hong Kong Special Administrative Region.

- The *Project Manager* * is

  Principal Project Coordinator/Environmental Projects, Major Works Project Management Office, Highways Department

  Address: 6th Floor, Ho Man Tin Government Offices, 88 Chung Hau Street, Homantin, Kowloon, Hong Kong

- The *Supervisor* * is

  Senior Engineer/Outstanding Noise Barriers, Major Works Project Management Office, Highways Department

  Address: 6th Floor, Ho Man Tin Government Offices, 88 Chung Hau Street, Homantin, Kowloon, Hong Kong

- The *tribunal* is the arbitrator in accordance with Clause G1 of the *additional conditions of contract*.

- The Scope is in the document entitled "Scope" bound with other contract documents.

- The Site Information is in the document entitled "Site Information" bound with other contract documents.

- The *boundaries of the site* are shown on the following drawing no.:

  HMWHY2214-LP0001

- The *language of the contract* is English.

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* Where a person is appointed to be the *Project Manager* or the *Supervisor* or the delegate of either and is described as the holder for the time being of a Public Office, any person for the time being lawfully discharging the functions of that Public Office or any part of such functions and any person appointed to act in or perform the duties of such Public Office or any part of such duties for the time being may carry out the duties and may exercise the powers of the *Project Manager* or the *Supervisor* or the delegate of either as the case may be. "Public Office" means an office of emolument under the Government of the Hong Kong Special Administrative Region, whether such office be permanent or temporary.

- The *law of the contract* is the law of the Hong Kong Special Administrative Region.

- The *period for reply* is six weeks for events requiring to obtain confirmation of no objection from the *Client* in accordance with Clause B1 of the *additional conditions of contract*, or three weeks for other events.

- The following matters will be included in the Early Warning Register:

  1. Late obtaining approval on temporary traffic arrangements
  2. Adverse weather (e.g. Typhoon)
  3. Public complaint on the construction work
  4. Congested working environment and difficult access
  5. Management of subcontractors
  6. Stability failure of adjacent slope and/or retaining wall
  7. Availability of construction materials
  8. Safety and hazards
  9. Delay of possession of site
  10. *Contractor* unable to complete the works as scheduled
  11. Unwilling to take over the completed works by maintenance party
  12. Unacceptable noise impact caused by construction
  13. Availability of labour
  14. Major dispute between *Contractor* & *Client* affecting the progress of work
  15. Damage to existing highway structures
  16. Difficult to maintain adjacent highway structures during construction

- After the first early warning meeting, the intervals for holding later early warning meetings should be no longer than 1 month.

3 Time

- The *starting date* is the date which is within 2 weeks from the Contract Date and as notified by the *Project Manager* after acceptance of tender.
- The *access* date is the *starting date* for the whole of the Site
- The *Contractor* is to submit a first programme for acceptance within 2 weeks of the Contract Date.
- The *Contractor* submits revised programmes for acceptance at intervals no longer than 1 month.
- The *completion date* for the whole of the *works* is the date of 365 days after the *starting date*.

4 Quality management

- The period after the Contract Date within which the *Contractor* is to submit a quality policy statement and quality plan is 1 month.
- The period between Completion of the whole of the *works* and the *defects date* is 12 months.
- The *defect correction period* is 12 weeks.

5 Payment

- The *currency of the contract* is Hong Kong Dollar.
- The *assessment interval* is 1 month.
- The *interest rate* is a rate equal to the average of the best lending rates for Hong Kong dollars quoted from time to time by the note-issuing banks plus 1% p.a. For the purposes of this provision, "note-issuing bank" has the same meaning as in the Legal Tender Notes Issue Ordinance (Chapter 65 of the Laws of Hong Kong).

6 Compensation events

- The *value engineering percentage* is 50%.

8 Liabilities and insurance

- The contract requires a minimum limit of indemnity for each of the following insurances (please note that the following is <u>not</u> exhaustive list of insurances to be provided by the *Contractor*):
- The minimum limit of indemnity for insurance in respect of loss of or damage to property (except the works, Plant and Materials and Equipment) and liability for bodily injury to or death of a person (not an employee of the *Contractor*) arising from or in connection with the *Contractor* Providing the Works for any one occurrence unlimited for the Period of Insurance is HK$10,000,000.
- The *Contractor* effects and maintains professional indemnity insurance for a minimum amount as stated in Clause F5(1) of the *additional conditions of contract*, in respect of the *Contractor*'s design, except the Cost Savings Design. Coverage and indemnity are in compliance with Clause F5 of the *additional conditions of contract*.

- Each of the *Contractor*'s Designer and Independent Checking Engineer effects and maintains professional indemnity insurance for a minimum amount as stated in Clause F5(2) of the *additional conditions of contract*, in respect of the *Contractor*'s design, except the Cost Savings Design. Coverage and indemnity are in compliance with Clause F5 of the *additional conditions of contract*.

- The *Contractor* effects and maintains professional indemnity insurance for a minimum amount as notified by the *Client* to the *Contractor* in accordance with Clause F6(1) of the *additional conditions of contract*, in respect of the Cost Savings Design. Coverage and indemnity are in compliance with Clause F6 of the *additional conditions of contract*.

- Each of the *Contractor*'s Designer and Independent Checking Engineer effects and maintains professional indemnity insurance for a minimum amount as notified by the *Client* to the *Contractor* in accordance with Clause F6(2) of the *additional conditions of contract*, in respect of the Cost Savings Design. Coverage and indemnity are in compliance with Clause F6 of the *additional conditions of contract*.

X7 Delay damages (as amended by the Articles of Agreement)

- Delay damages for Completion of the whole of the *works* are HK$ 1.629 x 10^{-4} (Y1) + $8,771.14 per day.

  where :
  Y1 = Total sum of Schedule Nos. 1 to 4 and Schedule No. 6 in the Activity Schedule and Provisional sum for price adjustment for inflation under Secondary Option X1.

- The minimum amounts of delay damages for Completion of the whole of the *works* are HK$2,280 per day.

- In computing the above delay damages, the *Client* has not taken into account the *Client*'s liability for fees including economic cost under the Land (Miscellaneous Provisions) Ordinance, Cap.28 ("the Ordinance") for any extension in respect of a permit referred to in sections 10A(3) and 10D(4) of the Ordinance.

X14 Advance Payment to the *Contractor*

- The amount of the advance payment is the lesser of (i) an amount equal to two percent (2%) of the tendered total of the Prices set out in Contract Data Part two at the date of acceptance of the tender or (ii) HK$30,000,000.

- The *Contractor* repays the instalments in assessments starting at the 7th month after the Contract Date. The instalments are 1/6 of the advance payment.

X16 Retention (as amended by the Articles of Agreement)

- The *retention free amount* is HK$0.00.
- The *retention percentage* is 1%.

X20 Key Performance Indicators

- The *incentive schedule* for Key Performance Indicators is in Appendix A to this Contract Data Part one.

- A report of performance against each Key Performance Indicator is provided at intervals of 1 month.

Z *additional conditions of contract*

- The *additional conditions of contract* are set out in the document entitled "Additional Conditions of Contract" which forms part of the contract.

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